

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
TYLEEHA CARTER,

Plaintiff,

-against-

CITY OF NEW YORK, BORIS MIRKIN, AWAIS  
MAZHAR, JUAN PEREZ, MODELL'S II, INC.,  
MODELL'S NY II, INC., and EDGAR BIDOT,Defendants.  
-----X

TO THE ABOVE-NAMED DEFENDANTS:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
November 29, 2021**SIM & DEPAOLA, LLP***Attorneys-at-Law*

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Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola  
Samuel C. DePaola, Esq.  
*Attorney for Plaintiff*

TO: **CITY OF NEW YORK**

*Via* Corporation Counsel of The City of New York  
100 Church Street  
New York, New York 10007

**Lt. AWAIS MAZHAR**

*Via* NYPD Transit District 32  
960 Carroll Street  
Brooklyn, New York 11225

**Sgt. BORIS MIRKIN** (Shield No. 2288)

**P.O. JUAN PEREZ** (Shield No. 1757)

*Via* Manhattan Court Section  
100 Centre Street  
New York, New York 10013

**MODELL'S II, INC.**

**MODELL'S NY II, INC.**

**EDGAR BIDOT**

*Via* New York Secretary of State

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
TYLEEHA CARTER,

Plaintiff,

**VERIFIED COMPLAINT**

-against-

Index No.

CITY OF NEW YORK, BORIS MIRKIN, AWAIS  
MAZHAR, JUAN PEREZ, MODELL'S II, INC.,  
MODELL'S NY II, INC., and EDGAR BIDOT,

Defendants.  
-----X

Plaintiff, **Ms. TYLEEHA CARTER**, by and through the undersigned attorneys,  
Sim & DePaola, LLP, for her complaint against Defendants, **CITY OF NEW YORK,**  
**BORIS MIRKIN, AWAIS MAZHAR, JUAN PEREZ, MODELL'S II, INC., MODELL'S**  
**NY II, INC., and EDGAR BIDOT**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress against defendants *vis-à-vis* sections 1981, 1983, 1985, 1986 and 1988, of Title 42 to the Code of Laws of the United States, for the violations of her civil rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from a March 15, 2018, incident, in which defendants, acting under color of state law, caused Plaintiff to be illegally stopped, searched, seized, detained and arrested, in addition to being assaulted and battered through the use of excessive force.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. The above-referenced acts caused Plaintiff to be deprived of her right to be free from unreasonable searches and seizures, in addition to violating Plaintiff's rights to be afforded Equal Protection, Due Process and a Fair Trial.

5. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other and further relief, as this Court may deem just and proper.

### **PARTIES**

6. Plaintiff, Ms. Tyleeha Carter ("Ms. Carter"), is a Black or African American female, who resides in The Bronx, New York.

7. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

8. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including corrections officers, police officers, detectives and supervisory officers as well as the individually named Defendants herein.

9. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. Defendants, Boris Mirkin ("MIRKIN"), Awais Mazhar ("MAZHAR") and Juan Perez ("PEREZ") were, at all times here relevant, police officers, sergeants, lieutenants or other supervisory officers employed by the NYPD and, as such, were acting in the capacity as agents, servants, and employees of the City of New York. Defendants MIRKIN, MAZHAR and PEREZ were, at the times here relevant, assigned to the 28<sup>th</sup> Precinct, Transit District 32 or the Manhattan Court Section. Defendants MIRKIN, MAZHAR and PEREZ are being sued in their individual and official capacities.

11. Defendants, MODELL'S II, INC., and MODELL'S NY II, INC. (hereinafter referred to collectively, as "MODELL'S"), are publicly traded foreign corporations organized under the laws of the State of Delaware with principal places of business in the State of New York.

12. Defendant, Edgar Bidot ("BIDOT"), was at all times here relevant, employed by Defendant MODELL'S as a loss prevention officer, manager or associate.

13. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

14. Plaintiff's Notice of Claim was deemed timely served, *nunc pro tunc*, by the Honorable Alexander M. Tisch, Justice of the Supreme Court for the County of New York.

15. Over 30 days have elapsed since the filing of said notice of claim and this matter has not been settled or otherwise disposed of.

16. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to section 50-H of the New York General Municipal Law.

17. This action has been commenced within one year and ninety days from the relevant accrual dates.

### **FACTUAL CHARGES**

18. On, or about, March 15, 2018, at approximately 1:00 p.m., Ms. Carter was inside a sporting goods store owned, operated and maintained by Defendant MODEL'S, located at 300 West 125<sup>th</sup> Street, New York, New York.

19. Ms. Carter was inside said store to purchase a sweater.

20. Ms. Carter was unlawfully stopped, searched, detained and arrested by Defendant BIDOT, a loss prevention officer or associate employed by Defendant MODEL'S.

21. Defendant BIDOT falsely accused Plaintiff of stealing or attempting to steal items from MODEL'S, despite possessing no evidence indicative of such criminality.

22. Defendant BIDOT falsely accused, stopped and arrested Plaintiff on the basis of race, as Plaintiff was not engaged in any activity that could possibly be construed as illicit or criminal in any way, whatsoever.

23. Defendant BIDOT selectively treated Plaintiff compared to other white individuals who were engaged in similar or identical behavior to Plaintiff, namely the quiet of browsing of merchandise for sale.

24. Despite said white individuals engaged in the same or similar behavior, Defendant BIDOT targeted only Plaintiff and therefore discriminated against her on the basis of race or color.

25. After stopping and detaining Plaintiff, Defendant BIDOT falsely reported to the police that Plaintiff committed or attempted to the crime of larceny, which Defendant BIDOT knew to be untrue and a complete fabrication.

26. Ms. Carter was committing no crimes or violations of the law on March 15, 2018.

27. Defendants, including MIRKIN, MAZHAR and PEREZ, then arrived at the Modell's Sporting Goods store, and placed handcuffs on Ms. Carter without a legal reason to do so, as defendants did not possess any credible evidence or information to warrant the arrest of Plaintiff.

28. Defendants, including MIRKIN, MAZHAR and PEREZ, also failed to properly investigate the allegations, because defendants refused to view the video surveillance recording that was readily available, despite Plaintiff advising defendants that said recording would prove her innocence.

29. Defendants, including MIRKIN, MAZHAR and PEREZ, therefore, did not have reasonable suspicion or probable cause to stop, question, frisk, search or seize Ms. Carter.

30. Defendants, including MIRKIN, MAZHAR and PEREZ, were not in possession of any evidence supporting the presence of probable cause to arrest or detain Ms. Carter.

31. Defendants, including MIRKIN, MAZHAR and PEREZ, refused to view the store surveillance video, despite it being readily accessible to them and able to conclusively prove Ms. Carter's innocence.

32. Defendants, including MIRKIN, MAZHAR and PEREZ, failed to conduct even a cursory investigation prior to placing Ms. Carter under arrest.

33. Defendants, including MIRKIN, MAZHAR and PEREZ, never observed Ms. Carter commit any crimes or violations of the law.

34. Defendants, including MIRKIN, MAZHAR and PEREZ, arrested and gave unwarranted credence to the loss prevention officer's version of events, solely because of Ms. Carter's status as a young, twenty-eight-year-old, Black female.

35. Defendants, including MIRKIN, MAZHAR and PEREZ, then transported Ms. Carter to the 28<sup>th</sup> precinct.

36. Defendants, including MIRKIN, MAZHAR and PEREZ, illegally searched Ms. Carter's person without probable cause.

37. On March 15, 2018, at approximately 7:00 p.m., Defendants, including MIRKIN, MAZHAR and PEREZ, transported Ms. Carter to Manhattan Central Booking.

38. At central booking, Ms. Carter was within the custody of Defendants, including, MIRKIN, MAZHAR and PEREZ, who detained with her an all-male population.

39. Defendants, including MIRKIN, MAZHAR and PEREZ, then lined Ms. Carter up against the wall with all male detainees.

40. As Ms. Carter was lined up against the wall, she began to feel ill.

41. Ms. Carter then requested medical attention in the presence of Defendants, including MIRKIN, MAZHAR and PEREZ.



42. Defendants, including MIRKIN, MAZHAR and PEREZ, repeatedly denied Ms. Carter medical attention, despite each being fully aware that she was a four-month high risk pregnancy.

43. After Ms. Carter requested medical attention due to her delicate condition, Defendants, including MIRKIN, MAZHAR and PEREZ, became exceedingly and visibly irate with Ms. Carter.

44. Defendants, including MIRKIN, MAZHAR and PEREZ, repeatedly yelled at Ms. Carter to “shut up” and “stop complaining.”

45. Defendants, including MIRKIN, MAZHAR and PEREZ, sadistically forced to Ms. Carter to remain standing against the wall for over an hour, all while she was complaining of painful symptoms due to her pregnancy.

46. During said hour, Defendants, including MIRKIN, MAZHAR and PEREZ, each ignored Ms. Carter’s complaints and requests for medical attention or yelled at her to “shut up.”

47. After said hour, Ms. Carter was eventually permitted to sit on a chair by defendants, including MIRKIN, MAZHAR and PEREZ.

48. Shortly thereafter Defendants, including MIRKIN, MAZHAR and PEREZ, approached Ms. Carter and aggressively yanked her out of the chair by the metal chain linking her two handcuffs, which caused Ms. Carter to sustain immense pain and suffering.

49. Defendants, including MIRKIN, MAZHAR and PEREZ, proceeded to mercilessly drag Ms. Carter by the connecting metal chain, while simultaneously applying an overly excessive amount of physical pressure to her hands and wrists.

50. Ms. Carter frantically pleaded with Defendants, including MIRKIN, MAZHAR and PEREZ, to stop, all to no avail.

51. Ms. Carter began to cry due to the immeasurable pain and agony, which served only to exacerbate her tormentors' unwarranted animosity toward her.

52. Ms. Carter again pleaded with defendants, including MIRKIN, MAZHAR and PEREZ, to stop hurting her so badly, as she had done nothing to defendant, is female and carrying an unborn child.

53. Defendants, including MIRKIN, MAZHAR and PEREZ proceeded to yell racially and sexually derisive remarks at Ms. Carter.

54. Defendants, including MIRKIN, MAZHAR and PEREZ, then described various sexual acts that defendant would be performing while Ms. Carter remained incarcerated.

55. Defendants, including MIRKIN, MAZHAR and PEREZ, repeatedly directed racial and sexual insults towards Ms. Carter that were incredibly insensitive, racist, sexist, emotionally hurtful, derogatory and unwarranted.

56. Ms. Carter eventually learned that the cause of Defendants, including MIRKIN, MAZHAR and PEREZ, ire, was her mere presence, particularly her prior requests for immediate medical attention and her status as a pregnant Black female.

57. Defendants, including MIRKIN, MAZHAR and PEREZ, berated Ms. Carter, because they attributed their overtime work assignments to her requests for medical attention.

58. En route to the medical treatment center, defendants, including MIRKIN, MAZHAR and PEREZ, tightened Ms. Carter's handcuffs in an unreasonably tight fashion, which immediately caused her hands and wrists to swell around the metal, nearly enveloping them completely.

59. Ms. Carter then shrieked in agony due to the pain.

60. In response Defendants, including MIRKIN, MAZHAR and PEREZ, proceeded to drag Ms. Carter by connective center link of her handcuffs, rendering her near unconscious due to the pain and suffering.

61. Ms. Carter then desperately implored defendants, including MIRKIN, MAZHAR and PEREZ, to cease his sadistic behavior, again to no avail.

62. Defendants, including MIRKIN, MAZHAR and PEREZ, eventually responded to Ms. Carter's pleas for mercy in the form of racist and sexist utterances.

63. Defendants, including MIRKIN, MAZHAR and PEREZ, proceeded to infuse his derogatory remarks with a racially and sexually motivated animus.

64. Defendants, including MIRKIN, MAZHAR and PEREZ, repeatedly insulted Ms. Carter's socioeconomic status, race and sex by referring to Ms. Carter as a "broke Black bitch" on numerous occasions.

65. Defendants, including MIRKIN, MAZHAR and PEREZ, then inexplicably decided to taunt Ms. Carter by detailing various sexual acts he intended to perform on other men, while Ms. Carter would remain detained.

66. The conduct of Defendants, including MIRKIN, MAZHAR and PEREZ, was so extreme and outrageous that nearby male prisoners began to shout and yell in a concerted effort to render aid to Ms. Carter and prevent any further egregious misconduct by Defendants, including MIRKIN, MAZHAR and PEREZ.

67. Defendants, including MIRKIN, MAZHAR and PEREZ, were present and in the immediate vicinity of Ms. Carter for the duration of the aforesaid reprehensible conduct, yet did nothing, except laugh and observe.

68. Due to the severe injuries that Ms. Carter sustained to her hands and wrists from Defendants, including MIRKIN, MAZHAR and PEREZ, she was immediately transported to Bellevue Medical Center, where she received further treatment.

69. Defendants, including MIRKIN, MAZHAR and PEREZ, accompanied Ms. Carter to Bellevue, where he continued his verbal assault against her, berating her as, *inter alia*, "a dirty black bitch, whore."

70. Defendants, including MIRKIN, MAZHAR and PEREZ, witnessed all of this, yet failed to intervene in any form or manner, even after Ms. Carter begged them to imagine someone treating their daughters or wives as Ms. Carter was being treated.

71. Ms. Carter eventually received the diagnosis that her hand was fractured and was involuntarily returned to Manhattan Central Booking.

72. Upon arrival at Central Booking, Ms. Carter was immediately queued up for arraignment due to her injuries and pregnancy condition.

73. Ms. Carter was then unceremoniously presented with two incredibly unappealing options – plead guilty to crime she did not commit, with no need to return, or defend her innocence, *vis-à-vis* an indeterminable amount of mandatory return appearances to the scene of her torment.

74. Ms. Carter was therefore compelled to choose the former.

75. Ms. Carter was the only female prisoner present during her interactions with Defendants, including MIRKIN, MAZHAR and PEREZ, as the other prisoners were all males.

76. Ms. Carter was subjected to the aforementioned verbal abuse and use of excessive force due solely to her race, color, ethnicity, disability or sex.

77. The intentional, extreme and outrageous conduct by Defendants, including MIRKIN, MAZHAR and PEREZ, towards Ms. Carter caused her to suffer severe emotional distress, which is believed to be permanent.

78. Defendants have displayed a pattern and practice of using excessive force against defenseless individuals, who have been rear-handcuffed and within the custody of police officers, such as Ms. Carter.

79. During all of the events described, the Defendants, including MIRKIN, MAZHAR and PEREZ, acted maliciously, outrageously and with intent to injure Plaintiff.

80. At all times relevant hereto, Defendants, including MIRKIN, MAZHAR and PEREZ, were involved in the process of using excessive force against Plaintiff or failed to intervene when they observed others physically contacting Plaintiff with excessive force.

81. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

82. Countless articles and reports have been published about the NYPD’s systemic problems, ranging from the rampant use of excessive force to biased policing and its own obvious failure to adequately police itself. *The Washington Post* published an article, entitled – “What else is the NYPD Hiding?” – written by Radley Balko on March 28, 2019, detailing the incredible lack of transparency regarding allegations of misconduct against NYPD officers and the overwhelming absence of any corrective measures or discipline. The website, *Politico*, posted an article on August 15, 2019, entitled “Under Increased Scrutiny, NYPD Faces Bias Complaints from Muslim New Yorkers.” Unsurprisingly, this posting described various instances, in which NYPD officers were alleged to have

employed the use of excessive force against protected classes. Lastly, *The New York Daily News*, on June 17, 2019, published an article written by Rocco Parascandola describing how a federal judge, Hon. Raymond Dearie, “lambasted the NYPD for accepting repeated denials from a detective accused of misconduct and City lawyers for standing behind flimsy internal investigations.” The article further highlighted the exceedingly poor quality of the NYPD’s internal investigations, a problem that is only compounded by the NYPD’s fierce privacy protocols, regarding its officers’ personnel files.

83. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s subjection to excessive force.

84. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of the appropriate amount of force to be used.

85. Defendants’ actions, pursuant to plaintiff’s cruel and inhuman detainment, were so blatantly violative of plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

86. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

87. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

88. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including the individual named defendants herein.



89. Defendant City continued to permit Defendant MAZHAR to interact with defenseless individuals, such as Plaintiff, despite finding Defendant MAZHAR guilty after an interdepartmental hearing of threatening an individual, for which he was suspended for a total of thirty (30) days.

90. Defendant City continued to place defendants, including MIRKIN, MAZHAR and PEREZ, in positions where he would be able to inflict substantial harm, despite being fully aware of his alarming tendency to apply excessive force against undeserving individuals.

91. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violations of her rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**

Unlawful Search & Seizure Under  
New York State Law

92. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

93. Defendants subjected Plaintiff's person and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

94. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person or property.

95. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

96. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

97. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law.

98. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SECOND CAUSE OF ACTION**

Unlawful Search & Seizure Under  
42 U.S.C. § 1983 *Against* Individual Defendants

100. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

101. Defendants subjected Plaintiff's person and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

102. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to Plaintiff's person and property.

103. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

104. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

105. Accordingly, defendants violated Plaintiff's rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**THIRD CAUSE OF ACTION**

False Arrest & False Imprisonment Under  
New York State Law

107. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

108. Defendants subjected Plaintiff to false arrest, false imprisonment and the deprivation of liberty without probable cause.

109. Plaintiff was conscious of her confinement.

110. Plaintiff did not consent to her confinement.

111. The arrest and imprisonment of Plaintiff were not otherwise privileged.

112. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FOURTH CAUSE OF ACTION**

False Arrest & False Imprisonment Under  
42 U.S.C. § 1983 *Against* Individual Defendants

114. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

115. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

116. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

117. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FIFTH CAUSE OF ACTION**

Violations of Rights Under  
Americans with Disabilities Act *Against* All Defendants

119. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

120. Plaintiff's high-risk pregnancy constituted a disability under the Americans with Disabilities Act (ADA).

121. Defendants intentionally discriminated against Plaintiff on the basis of her disability.

122. Defendants also selectively treated Plaintiff in comparison to others similarly

situated.

123. Defendants' selective treatment of Plaintiff was based on impermissible considerations regarding Plaintiff's disability.

124. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SIXTH CAUSE OF ACTION**

Assault & Battery Under  
New York State Law

126. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

127. Defendants caused Plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful or offensive touching.

128. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without her consent or other legal justification therefor.

129. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

130. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

**SEVENTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 *Against* Individual Defendants

131. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

132. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of Plaintiff.

133. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without her consent.

134. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

**EIGHTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

135. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

136. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

137. Defendants had no excuse or justification to forcibly detain or initiate a criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

138. Defendants intended to inflict substantial harm upon Plaintiff.

139. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

140. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**NINTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
42 U.S.C. § 1983 *Against* Individual Defendants

142. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

143. Defendants arrested, detained and a caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

144. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

145. Defendants intended to inflict substantial harm upon Plaintiff.

146. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

147. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

148. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**TENTH CAUSE OF ACTION**Denial of Right to Due Process Under  
New York State Law

149. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

150. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

151. Defendants forwarded said fabrications and false information to prosecutors.

152. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following her arraignment in criminal court.

153. Accordingly, defendants violated Plaintiff's right to Due Process, pursuant to sections 1, 2 and 6, of Article I to the constitution of the State of New York, and section 12, Article II, of the New York Civil Rights Law.

154. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

155. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**ELEVENTH CAUSE OF ACTION**Denial of Rights to Fair Trial & Due Process Under  
42 U.S.C. § 1983 *Against* Individual Defendants

156. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.



157. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

158. Defendants forwarded said fabrications and false information to prosecutors.

159. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following her arraignment in criminal court.

160. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**TWELFTH CAUSE OF ACTION**

Violation of Victims of Violent Crime Protection Act Under  
New York City Law

162. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

163. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

164. Accordingly, defendants committed crimes of violence against Plaintiff and violated Plaintiff's rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

165. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

166. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**THIRTEENTH CAUSE OF ACTION**

Biased Based Profiling Under  
New York City Law

167. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

168. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

169. Accordingly, defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

170. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

171. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FOURTEENTH CAUSE OF ACTION****Deprivation of Rights & Denial of Equal Protection of the Laws Under  
New York State Law**

172. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

173. Plaintiff, as a Black or African American female, belongs to a racial minority and a protected class.

174. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

175. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

176. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

177. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

178. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

179. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

180. Accordingly, defendants violated Plaintiff's rights, pursuant to section 11, Article I of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

181. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

182. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**FIFTEENTH CAUSE OF ACTION**

Deprivation of Rights & Denial of Equal Protection of the Laws Under  
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

183. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

184. Plaintiff, as a Black or African American female, belongs to a racial minority and a protected class.

185. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

186. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

187. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

188. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

189. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

190. Defendants did not possess a rational basis, excuse or justification for applying any

laws or statutes against Plaintiff.

191. Accordingly, defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

192. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

193. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SIXTEENTH CAUSE OF ACTION**

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under  
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

194. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

195. Defendants engaged in a conspiracy against Plaintiff to deprive her of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of her liberty or property without Due Process of Law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

196. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

197. As a result, Plaintiff sustained injuries to his person, was deprived of her liberty, rights or privileges as a citizen of the United States.

198. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of her civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

199. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective and neglected to do so.

200. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

201. Defendants City and MODELL'S, as employers of the individual Defendants, are responsible for their wrongdoings, under the doctrine of *respondeat superior*.

202. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

#### **SEVENTEENTH CAUSE OF ACTION**

##### **Failure to Intervene Under New York State Law**

203. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

204. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

205. Defendants City and MODEL'S, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

206. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**EIGHTEENTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 *Against* Individual Defendants

207. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

208. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

209. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

210. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**NINETEENTH CAUSE OF ACTION**

Negligent Hiring, Training, Retention & Supervision Under  
New York State Law

211. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

212. Defendants City and MODEL'S owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

213. Defendants City and MODEL'S breached those duties of care.

214. Defendants City and MODEL'S placed the individually named defendants herein in a position where they could inflict foreseeable harm.

215. Defendants City and MODEL'S knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

216. Defendants City and MODEL'S failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

217. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**TWENTIETH CAUSE OF ACTION**  
Municipal "*Monell*" Liability Under  
42 U.S.C. § 1983 *Against* Defendant City

218. The above paragraphs are hereby incorporated by reference, as though fully set forth herein.

219. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as Plaintiff.

220. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.



221. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers, including the individually named police officers herein.

222. Defendant City's employee police officers engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers, including the individually named defendants herein.

223. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD officers, including the individually named defendants herein.

224. Defendant City's conduct resulted in violations of Plaintiff's civil rights, under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

225. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) Awarding Plaintiff compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

- v) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- w) Together with the costs and disbursements of this action, with all interest then accrued.

### JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York  
November 29, 2021

## SIM & DEPAOLA, LLP

*Attorneys-at-Law*

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola  
Samuel C. DePaola, Esq.  
*Attorney for Plaintiff*

### ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
November 29, 2021

/s/ Samuel C. DePaola  
**SAMUEL C. DEPAOLA, ESQ.**

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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TYLEEHA CARTER,

Plaintiff,

-against-

CITY OF NEW YORK, BORIS MIRKIN, AWAIS MAZHAR, JUAN PEREZ, MODELL'S  
II, INC., MODELL'S NY II, INC., and EDGAR BIDOT,

Defendants.

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**SUMMONS & VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**

By: Samuel C. DePaola, Esq.  
*Attorneys for Plaintiff*  
42-40 Bell Boulevard  
Suite 405  
Bayside, New York 11361  
Tel. (718) 281-0400

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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

*Attorneys for Defendants*

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Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for